

# M/s Sparsh Industries Pvt. Ltd. v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 21 March 2017 · Writ-C No. 32059 of 2014 · **Writ dismissed following connected Writ-C No. 30898 of 2016.**

## HEADNOTE

Writ against a Para 4.20 additional-security demand was dismissed by adopting the order of even date in connected Writ-C No. 30898 of 2016. An earlier Division Bench had, without prejudice, restrained the licensee from demanding additional security pending the petition, on parity with similar writs.

## FACTUAL SUMMARY

M/s Sparsh Industries Pvt. Ltd. challenged Dakshinanchal Vidyut Vitran Nigam Ltd.'s 27.05.2014 demand for additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005, citing interim orders in similar writs including Supreme Ceramics (WP 51844 of 2009). The Court connected the matter with WP(C) 51884 of 2009 and later WP 30898 of 2016, called for affidavits, and restrained the demand until further orders. On 21.03.2017 it dismissed the writ, adopting the order of even date in the connected 2016 petition.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::4.20

additional security demand

### HOLDING

A writ seeking to quash a Para 4.20 additional-security demand was dismissed, to be governed by the order of even date in connected Writ-C No. 30898 of 2016. Earlier, without prejudice to the parties' rights, the licensee had been restrained from demanding additional security until further orders, on the footing of an interim order in WP 51844 of 2009. ¶ 1-3

## TABLE OF AUTHORITIES

| AUTHORITY                                                                                                                     | PROPOSITION | HOW TREATED | CITED BY | TREATMENT |
|-------------------------------------------------------------------------------------------------------------------------------|-------------|-------------|----------|-----------|
| M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd. Writ Petition No. 51844 of 2009, order dated 7.10.2009 |             |             | 1        | Referred  |
| Writ-C No. 30898 of 2016 Writ-C No. 30898 of 2016, order dated 21.3.2017                                                      |             |             | 3        | Referred  |